

****Police Report****

****The Royal Theatre Recommended for Fine****

****Date: 09-01-2024****

****Decision****

****Public Authorities****

****Police Report****

****Supervision / Self-initiated Case****

****Fundamental Principles****

The Data Protection Agency reports The Royal Theatre to the police for failing to establish rules for the deletion of customer information for marketing purposes. The theatre is recommended for a fine of 250,000 DKK.

The Data Protection Agency has reported The Royal Theatre and the Chapel for having stored information about approximately 520,000 customers and newsletter recipients for marketing purposes, without having established deletion deadlines or implemented fixed procedures or guidelines for the deletion of the information.

The Data Protection Agency initiated an investigation on its own initiative in September 2022, and it was found that The Royal Theatre had not established rules for the deletion and storage of personal data, despite the theatre already being aware that this had not been done. The information was only deleted in cases where individual customers specifically requested deletion or withdrew their consent to receive direct marketing.

The Royal Theatre only began to develop and implement a deletion policy when the agency initiated its investigation.

****Why Police Report?****

The Data Protection Agency always conducts a specific assessment of the severity of the case pursuant to Article 83, paragraph 2 of the General Data Protection Regulation, when evaluating which sanction the agency considers to be appropriate.

In assessing that a fine should be imposed, the Data Protection Agency has, among other factors, emphasized that this is a violation of fundamental principles for the processing of personal data, that it involves a very large number of registered customers, and that the information has been actively used for marketing purposes. Furthermore, the agency has also taken into account aggravating circumstances, noting that the violation is considered to have been committed intentionally.

****Want to Know More?****

Read more about deletion.

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